



Rights for nature or protecting people's rights?: The operationalization of rights of nature in non-indigenous communities in the United States

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ABSTRACT

As the Rights of Nature movement gains political traction globally, researchers must examine how this transnational movement to extend rights to nature or natural entities is being operationalized in place. Proponents of the rights of nature contend transferring rights to nature constitutes a paradigm shift in human-environment interactions and will lead to solutions directed at the root causes of environmental problems. Critics contend that these rights-based governance structures have the potential to do more harm than good for environmental protection depending on the cultural and legal frameworks within which rights of nature are enacted. In this paper, I examine how rights of nature have been operationalized in non-Indigenous communities in the United States through an analysis of rights of nature ordinances passed in these communities between 2006 and 2020. Drawing on theoretical engagements with rights I demonstrate how the reliance on universalizing human rights frameworks and anti-corporation rhetoric both distinguish these ordinances from the broader rights of nature movement and center the rights of people to have access to a clean environment rather than the intrinsic rights of nature. In conclusion, I explore alternatives to how rights of nature are currently operationalized in non-Indigenous communities in the United States and call for increased research on the implications and impacts of rights of nature ordinances to assess whether they achieve their stated goals.

1. Introduction

Rights of Nature (RoN) is a transnational “rights-based environmental governance” structure that uses liberal legal rights to protect nature rather than relying on existing forms of environmental governance (Kohl and Walenta 2023). The movement traces its intellectual origins to Earth Jurisprudence scholarship which contends that current environmental crises are caused by cultural and legal systems in which human needs are separate and superior to those of nature (Berry 1999; Boyd 2017; Cullinan 2011). The RoN movement draws on different legal channels to grant nature legal rights akin to the rights secured by human persons, such as the right to live, thrive and flourish, and the right to not be polluted (Gilbert et al. 2023; Kauffman and Martin 2021; 2018; O'Donnell 2023; 2020; Putzer et al. 2022; Tănăsescu 2022). This can be done by granting personhood status to nature, either directly or indirectly through the appointment of an administering body, or by extending rights to nature (Kauffman and Martin 2021; Kurki 2022; Tănăsescu 2020). RoN advocates contend this structure provides greater protection to natural entities and will prevent catastrophic environmental destruction (Gilbert et al. 2023; O'Donnell 2023). For many, the extension of rights to nature represents a paradigm shift in the human-environment relationship (Cuadros 2019; Dogaru and Dogaru 2022a; Dogaru and Dogaru 2022b; Ito and Montini 2018; Villavicencio-

Calzadilla and Kotzé 2023). As more communities turn to RoN activism, and adopt RoN legal frameworks, there is an emerging theoretical debate in support of (Bradshaw 2022; Kauffman and Martin, 2023) and those raising concerns about extending rights to nature (Bellina 2024; Guim and Livermore 2021; Sachs 2023; Spitz and Penalver 2021; Petel 2024).

The motivations for transferring rights to nature vary over space and time but O'Donnell, writing in Eckstein et al. (2019), contends there at least four specific reasons that rivers, the natural entity she studies, are granted rights. These include (1) a recognition of Indigenous cosmologies and values, (2) eco-centrism, or bringing rivers and humans onto equal level, (3) market environmentalism, creating mechanisms through which rivers can participate in markets, and (4) private interest regulatory theory, which allows mechanisms through which rivers can advocate for themselves (Eckstein et al. 2019). In this paper, I add a motivation of people's desires to address a particular environmental concern for which traditional forms of environmental rule making are not providing them sufficient protection. In this way, I frame the understandings of RoN not only through legal understandings, but also in place and through political understandings because “one cannot understand what the rights of nature are *doing* without thinking about them in terms of power relations” (Tănăsescu 2022, 16). Given the diversity of how, why, and where RoN are adopted the operationalizations of RoN

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looks different in different places.

While RoN is a transnational movement, the specific place-based articulations of the movement and the outcomes of RoN activism are impacted by the social, cultural, and political context within which they take place (Kinkaid 2019; Gilbert et al. 2023; Tănăsescu et al. 2024). Through an examination of the over 60 RoN ordinances enacted within the United States (US) between 2008 and 2020 I build on current scholarship examining the operationalization of RoN in the US context (Fitz-Henry, 2018, 2022, 2023; Kohl and Walenta, 2023; Macpherson 2021; Moutrie, 2022) to expand our understandings of the place-based articulations of RoN.

In this paper, I carry out this analysis to examine how theoretical conceptions of RoN have been translated in US legal structures. Through this analysis and discussion, I demonstrate that the operationalization of RoN in non-Indigenous communities in the US shifts from granting nature the status of personhood to an extension of rights to nature by extending conceptions of human rights onto nature. I demonstrate how this universalization centers the needs of people rather than the intrinsic rights of nature. Moreover, the operationalization of RoN in these communities specifically has an anti-corporation clause. These differences contradict the claims of RoN proponents who justify the need for RoN legislation as necessary because it represents a paradigm shift by elevating nature's rights as equal to people's rights. I begin by reviewing conceptions of property, rights, personhood, and rights to nature, paying particular attention to the US context. From there, I explain the methods used. Then I use the theoretical frameworks to analyze the ordinances enacted in the US context. In conclusion, I call for more research on how, if at all, these ordinances are changing people's perceptions of nature and if environmental conditions have improved in and around places where RoN legislation has been enacted.

2. Property, Personhood, and Rights

To understand how RoN is operationalized in the US context it is necessary to begin with an understanding of what it means to be property, have the status of personhood under the law, and to have rights in the US legal context. While these concepts have colloquial definitions, these are legal terms, which are employed, debated, interpreted, and theorized.

2.1. Property

In its simplest form, property is something (either a specific thing or an attribute) that can be owned by a person or an entity. Legal scholars differentiate between (a) real property, things that are immovable by law such as structures, and (b) personal property, all property that is not real property. They also differentiate between tangible property, which exists in a physical form, and intangible property, which you cannot hold, such as patents and copyrights (<https://www.law.cornell.edu/wex/property>). Despite the definitional emphasis on property as a thing (tangible or intangible), property actually “concerns legal relations among people regarding control and disposition of valued resources” (Singer and Davidson 2022, 2). While designating ownership gives people power over things, within legal systems, it also highlights the agreed-upon relationship between people. It is this relationship between the person who has control over the things and others who respect that power that confers property rights (Singer and Davidson 2022). Since one person's actions will impact and may conflict with others' property rights, they are not absolute, instead, they are “limited to ensure that property use and ownership do not unreasonably harm the legitimate, legally protected personal or property interests of others” (Singer et al. 2022, xxxii).

In the US legal context, nature has been seen and defined as property. This can be traced to the writings of John Locke who conceived of and institutionalized nature as an object, a piece of property, whose owner could treat it virtually at will (Locke, 1690). For example, water rights in

the US transitioned from a public good to private property through either riparian rights or prior appropriation (Page and Pelizzon, 2024) (Macpherson 2021). In this way, since water is an object, water laws regulate the rights of different users of the water (O'Donnell 2023). RoN advocates contend that by viewing nature as property, it reinforces nature as separate and inferior to humans and inscribes these conceptions into the US legal system (Fitz-Henry 2018; Kauffman and Martin 2021; Tănăsescu 2022).

2.2. Personhood

In the US context, a legal person is one who can access certain rights and privileges but must also endure certain responsibilities and liabilities under the law. Black's Law Dictionary defines a legal person as “any entity, such as a corporation, created by law and given certain legal rights and duties of a human being; a being, real or imaginary, who for the purpose of legal reasoning is treated more or less a human being” (Garner 2019). Legal persons have standing in court, meaning they, or their representative or proxy, can be present, bear witness, and participate in legal proceedings. Legal personhood in the US originally only applied to white, land-owning men of at least 21 years of age. Over time legal definitions of personhood have expanded to include, at least on paper, all living humans, as well as institutional entities such as corporations, and more recently, in some jurisdictions, certain primate animals and natural entities (Barkan 2013; Nash 1989; Padfield, 2019; Stone 1972; Winkler 2018).

The notion that nature could move from property to have the standing of legal personhood was first introduced by Christopher Stone in his 1972 article, “Should Trees Have Legal Standing?” Stone suggested that the legal conception of rights be extended to nature, just as it had been extended to other inanimate right-holders such as “trusts, corporations, joint ventures, municipalities, Subchapter R partnerships, and nation-states” (Stone 1972, 452). Stone argued that natural entities deserved legal standing under the law, meaning they should be given the right to exist unharmed, and if harmed, the right to seek damages in court. As legal subjects, nature “can institute legal actions *at its behest*... the court must take *injury to it* into account...and relief must run to the *benefit of it*” (Stone 1972, 458, emphasis in original). Stone argued that historically the extension of rights to a new entity was always unthinkable, but over time it became not only acceptable as a legal convention, but unthinkable that the extension never existed.

In the US context, the debate regarding the definition of person and the legal status of personhood is both political and legal (Naffine 2012; Sattar 2021; Tănăsescu 2022). This can be seen in the ways the definition of person has been deployed within the legal and political sphere in support of, and in opposition to, women's legal rights to access abortions in the US (Alvaré, 2020; Chatman 2019). Furthermore, *Citizen United v. Federal Trade Commission* (2010), which conferred corporations with the right to free speech under the First Amendment of the US constitution, highlighted corporations' legal status of personhood, despite the fact this status was granted under the Fourteenth Amendment in 1886 in *Santa Clara County v. Southern Pacific Railroad* (Tucker 2010; Pollman 2011; Rubin, 2009). There are also legal and cultural understandings “that humans are categorically different from animals and from the rest of nature and that this difference should sound in law” which are not only embedded within our current laws, but are being challenged by the RoN movement (Naffine 2012, 69).

Within US legal scholarship, there is a debate as to whether extending rights to an entity automatically confers the status of legal personality, or if other criteria, such as ability and/or the capacity to hold rights and/or bear legal duties are necessary for the status of legal personality (Kurki 2023). Extending rights to an entity does shift the entity to a “legal subject *tout court* (“without qualifications”), while this does confer specific protections within US legal systems, the protections granted to legal subjects are different from those granted to legal personalities (Kurki 2023, 17, italics in original). For RoN advocates, the

transference of rights, or the status of personhood on nature, is one way to bring attention and make environmental degradation visible within the US legal and governmental systems (Fitz-Henry 2018; Macpherson 2021). At the same time, granting rights to nature or extending status of personhood to nature brings into stark contrast the constitutional protections that are offered to corporations which are not granted to the natural entities which are often threatened by corporate actions (Fitz-Henry 2018).

2.3. Human rights

Rights are not absolute; instead, they are negotiated, theorized, and used by different people in different ways to achieve their goals. According to Wex, Cornell Law School's Legal Information Institute's legal dictionary and encyclopedia, rights have three legal definitions. Rights are:

1. A power or privilege held by the general public as the result of a constitution, statute, regulation, judicial precedent, or other type of law; 2. A legally enforceable claim held by someone as the result of specific events or transactions ... [and] 3. Loosely, any situation or decision that seems proper or correct by virtue of legal, moral, or ethical ideals (i.e., the opposite of "wrong")" (<https://www.law.cornell.edu/wex/right>)

While the first two definitions of rights are legally enforceable, the third definition is not always legally enforceable and often depends on the situated norms and cultures of a specific place.

Within geography, rights are most often theorized with respect to human rights, rights conferred to specific groups (i.e., Indigenous rights), and rights to the city. For the purpose of this paper, I focus on human rights and rights to the city. As discussed below, many of the ordinances emulate human rights rhetoric. Rights to the city, which has given rise to the rights to nature approach to environmental management, offers a useful counterpoint to the RoN movement.

The definition of human rights is often articulated through the Universal Declaration of Human Rights (1948) and the United Nations International Bill of Rights (UN, 2024). Legally, human rights are defined as the:

fundamental rights to which all human beings are equally entitled. Unlike rights bestowed by governments, human rights are both inalienable and universal, and exist regardless of whether a state chooses to recognize them or not. In principle, human rights are applicable to every person, regardless of their age, sex, or nationality. (https://www.law.cornell.edu/wex/human_rights)

While discourse on human rights is often universalized, when operationalized, they are mutually constituted by geography, law, and justice (Carmalt 2019). Moreover, they are not neutral, nor are rights always exclusively tied to, nor solely reflect the law. Instead, they are negotiated through systems of power and resistance movements (Fladvad et al. 2020).

While rights are often seen as linear and chronological, Fladvad et al. (2020), drawing on the work of Honig (2009), contend that in doing so, this assumes that the rights have already existed and just needed to be articulated. Further, they contend that "new rights are neither self-contained, nor foreseeable, nor necessarily just. It is precisely their openness, plurality, and unpredictable trajectories that entail the possibility of generating and revealing new and yet unknown democratic energies and agonistic relationships" (Fladvad et al. 2020, 82). Moreover, human rights, when translated into practice represent the racial and gendered hierarchies that are embedded into our legal systems (Mills 2017; Wilson 2018). Since rights are often articulated as universal, they have always been mitigated and negotiated by conceptions of whose humanity matters, and how power systems are used to uplift or oppress certain groups (Mills 2017; Wilson 2018). Conceptions of rights were developed at a time when women were seen as property or in the

care of men, be it their fathers or husbands, and people of African descent were forcibly enslaved and seen as objects, not people. The manifestations of these processes of dehumanization still manifest themselves within the US legal system (Alexander 2010; Allard-Tremblay and Coburn, 2023; Mills 2017; Botts 2018; Wilkerson 2020; Yancy 2016).

By using the framework of human rights to extend rights to nature, RoN activists are replicating other forms of human-centered protection rather than earth-centered transformations touted by the movement (Macpherson 2021). Moreover, by transferring human rights to natural entities, there is a potential that when interests are not aligned between human wants and needs and nature's needs, an adversarial relationship may develop, which can weaken, instead of strengthen, community support for environmental protection (O'Donnell, 2018; Macpherson 2021).

2.4. Rights to the city, rights to nature

While rights are often conceptualized as relationships between people, or between people and the government, geographic thinking embeds rights within spaces and places. This can be seen with theoretical engagements with rights to the city, which critiques urban property rights and capital accumulation to imagine cities that contest neoliberal institutions and are, instead, based on inclusivity, accessibility, and democracy of people living in the spaces (Harvey 2008; Lefebvre (1996), 1968; Mitchell 2003; Pierce et al. 2016; Purcell 2002). While there has been some political saliency to the rights to the city movement, they have been critiqued as universalizing. Pierce et al. (2016) argue for a concept of Rights in Place, paralleling Traina's (2011) conception of 'situated rights', by recognizing the disconnect between the ideals of rights with the realities of the daily experiences of rights. For them, rights are not universal, instead, they are continually negotiated and represent the needs of actors situated in different geographic and political situations.

Environmental activists have adopted rights to the city concepts by invoking rights to nature. Rights to nature represents how people access and use parts of nature, or a specific aspect of nature, such as water. The movement challenges conceptions of private ownership and capitalist restrictions on nature, and integrates conceptions of social justice (Cortes-Vazquez and Apostolopoulou, 2019; Meriläinen and Lehtinen 2022). Some scholars go as far as to call rights to nature an environmental human right (Wissenburg, 2017). Scholars contend that rights to nature adds another dimension for environmental activists to consider how neoliberalization, systems of capital, and injustice impact how people can access, use, and protect the environment (Angel and Loftus 2019; Apostolopoulou and Adams 2019; Meriläinen and Lehtinen 2022; Wissenburg, 2017). In the introduction to a special issue of *Geoforum* (2019) on rights to nature, Cortes-Vazquez and Apostolopoulou (2019, 2023) contend that although there is importance in the term of rights to nature (or water or climate), the "interpretation of rights is not either straightforward or unproblematic, since it is directly influenced by different political, ideological and philosophical approaches." Just as human rights are contested and negotiated in place, so are the rights to nature and the rights of nature.

3. Methods

To carry out this analysis, I identified 67 communities in the US, seven of which were Indigenous communities, that considered RoN legislation through a legislative process from 2006 – 2020. I did not include ordinances that were proposed by community members, but were not taken up for consideration by a governing body. I included communities that enacted RoN legislation, but whose ordinances were subsequently thrown out due to litigation, or were later repealed by the community. I did this because, while the ordinances were not legally binding, they captured the discourse and desire of community members

at the moment it was enacted. I obtained copies of all the RoN ordinances from 2006 – 2020 that had been enacted within the US through RoN databases, clearinghouses developed by RoN activists that track the evolution of RoN legislation over space and time (i.e., see <https://communityrights.us>), CELDF's website (<https://www.celdf.org>), and local communities or county websites. By triangulating these multiple sources, I was able to locate all but one ordinance. I was unable to obtain a copy of Donegal, Pennsylvania's ordinance, which was repealed after it was enacted. I, therefore, did not include it in the analysis.

A copy of each ordinance was uploaded into Dedoose, a cloud-based qualitative research platform. I coded for key themes that were inductively developed using *a priori* codes drawn from the literature such as “nature granted personhood” or “right bearing entity” and *in situ* codes such as “fundamental and inalienable rights” or “shift burden of proof to corporation proving safety.” I coded each ordinance with respect to: (a) how they granted rights to nature (either through personhood or extension of rights to nature through specific rights such as “right of nature to clean air”); (b) whether or not, and how rights to self-governance were included in the ordinance, (c) what, if any, rights were stripped from corporations and how they were stripped (i.e. “denial of corporate personhood” or “residents rights are not subordinate to corporate rights”); (d) rights of enforcement and (e) rights granted to people (i.e. “right to cultural heritage,” “rights to clean air,” “rights to rural preservation”). All ordinances were assigned descriptors such as date enacted, location, legal motivation, and community demographics.

Through preliminary analysis, I determined there were significant differences between Indigenous and non-Indigenous ordinances in the language, motivation, and structure of the ordinance, particularly the six ordinances enacted by tribal governments (Kohl and Walenta, 2023). Since I am interested in how place-based cultural and legal systems influence the operationalization of RoN, these differences coupled with sovereignty and governance structures of tribal governments create a unique set of circumstances that influence how these communities operationalize RoN. Therefore, I did not include RoN ordinances enacted by Indigenous communities in the analysis. While I provide international examples and examples from Indigenous communities in the US as counterpoints to how non-Indigenous communities operationalize RoN, their full analysis is outside the scope of this paper.

After the ordinances were coded, the codes were analyzed for patterns between how ordinances were structured, how RoN was operationalized, how people and nature were discussed in the ordinances, and how corporations were engaged within the ordinances. In what follows, I focus on three aspects of RoN ordinances enacted in non-Indigenous communities in the US. The first is granting nature the status of personhood versus extending rights to nature. The second is the centering of the rights of people in opposition to centering the rights of nature. The third is the incorporation of an anti-corporate stance of RoN ordinances. The periods identified below represent natural breaks, and were chosen to demonstrate the changes that occurred over time in the operationalization of RoN in non-Indigenous communities in the US.

4. The evolution of rights of nature in the United States

The transnational nature of the RoN movement means the mechanisms, justification, and processes through which legal rights or personhood have been extended to nature are different from place to place. Legal rights have been extended to watersheds, ecosystems, natural features, specific localities, and in some instances, entire countries using different legal mechanisms to mobilize the extension of rights to nature, including but not limited to local ordinances, constitutional amendments, national laws, and court rulings (Kauffman and Martin, 2023; Kahui, Armstrong and Aanesen 2024; O'Donnell 2020; Pecharroman 2018; Putzer et al, 2022; Tănăsescu 2020). While the RoN movement is transnational, and there are similarities across the

movement, the cultural and legal context, and the means by which activists implement RoN, influences how it is operationalized (Angstadt and Hourdequin 2021; Corrigan and Oksanen 2021; Gilbert et al. 2023; Kahui, Armstrong and Aanesen 2024; Kauffman and Martin 2021; Tănăsescu 2020; Petel 2024;). While the history of the RoN movement globally and in specific countries is beyond the scope of this paper, there burgeoning literature on the RoN movement through international governance structures and the evolution of the RoN within specific countries.¹ To date, much of the focus on the evolution of RoN have focused on examples outside the US context. In this paper, I add to the burgeoning literature (see Babcock 2016; Bradshaw 2022; Fitz-Henry 2023; 2022; 2018; Kohl and Walenta, 2023; Macpherson 2021; Moutrie, 2022; Warner et al. 2023) that focuses on the operationalization of RoN within the US by looking at the over 60 ordinances that have been enacted within the US. I begin by providing context within which RoN ordinances evolved in the US to situate in place the arguments I make about the operationalizations of RoN ordinances.

It was not until the early 2000s that Stone's theoretical legal arguments of extending rights to nature were operationalized into law in the US. This process has been led by the Community Environmental Legal Defense Fund (CELDF), which was founded in 1995 by Stacey Schmaeder and Thomas Lindsay. CELDF originally focused on helping communities fight against environmental harms, but over time became disillusioned with the limits of the law to protect communities. As a result, they began to transition their focus to returning power to local communities and RoN. Their current mission statement is to “build sustainable communities by assisting people to assert their right to local self-government and the rights of nature” (CELDF, 2021). To do this, they focus on community rights, corporate “rights,” democratic rights, and rights of nature through education and outreach campaigns and by providing legal services to local communities.

Through their organizing and education, particularly through their democracy schools, CELDF has advocated that “the structure of federal and state law – both statutory and constitutional – empowers corporations to override local democratic decision-making” (<https://celdf.org/corporate-rights/>). Their flagship program, democracy school, is designed to explore “the limits of conventional regulatory organizing and offers a new organizing model that helps citizens confront the usurpation by corporations of the rights of communities, people, and earth” (CELDF, 2021). Local communities can host democracy schools as a way to begin to explore concepts related to community self-determination, the history of property ownership, the history of rights-based legal systems, methods to assert rights, and how to apply these concepts within their communities. Through this work, they advocate for limiting corporate rights and returning rights to the people through local self-government. In the US, they work with local community organizations and governments to draft RoN ordinances, provide legal support to court challenges to RoN legislation, and connect communities who are interested in enacted RoN ordinances. They claim to have helped over 200 municipalities through either legal assistance or educational outreach (CELDF, 2021).

The first documented operationalization of RoN theory to policy was

¹ There are extensive reviews and case studies that trace the history of the RoN movement both as a global transnational movement as well as in place-specific contexts, histories, and legal processes. For recent scholarship on international governance structures see (Gilbert et al. 2023; Kahui, Armstrong and Aanesen 2024; Kauffman and Martin 2018; Putzer 2022). For recent scholarship on specific countries see: Bolivia (Bellina 2024; Berros 2021; Tola 2018); Ecuador (see Kauffman and Martin 2017; 2023; Ordóñez, Shannon, and d'Auria 2022; Peck et al. 2023; Tănăsescu et al. 2024; Valladares and Boelens 2019); Aeotera New Zealand (Charpleix 2017; Magallanes 2015; O'Donnell and Talbot-Jones 2018; Salmond 2014; Takacs 2022; Te Aho 2010); Australia (O'Donnell and Talbot-Jones 2018); India (Kothari and Bajpai 2017; O'Donnell and Talbot Jones 2018); Columbia (Takacs 2021); and Europe (Alves et al 2023; Epstien and Schoukens 2021).

in 2006 in Tamaqua Borough, Pennsylvania. In the early 1990 s, the owners of giant pits, scars of the region's coal mining history, began making them available for the disposal of sludge, a combination of human, hospital, and chemical waste, as well as river dredging, and fly ash. While the owners of the pits profited, the community bore the brunt of the environmental and health impacts of this form of toxic waste disposal (EJOLT 2019). In response, community groups organized in opposition to the dumping and unsuccessfully pursued legal avenues to prevent the dumping. In 2006, one group began working with the CELDF to pass the *Tamaqua Borough Sewage Sludge Ordinance* which asserted that it was “unlawful ...to interfere with the existence and flourishing of natural communities or ecosystems or cause damage to those ecosystems”, and that “borough residents, natural communities, and ecosystems shall be considered [legal] “persons” for purposes of the enforcement of civil rights of those residents, natural communities, and ecosystems” (Tamaqua Borough 2006).

Since 2006, local communities in the United States have continued to adopt RoN ordinances. As is discussed in detail elsewhere (see Kohl and Walenta, 2023), the majority of the ordinances (53 or 88.3 %) are clustered in the northeastern, mid-Atlantic, and Great Lakes regions of the United States (see Figure 1). The reasons for this clustering could be related to the fact that CELDF is located in Mercersburg, Pennsylvania. The proximity to the work of CELDF and the networks developed by environmental activists and community organizations led to a spread of information. For example, in 2010 when Pittsburgh, Pennsylvania City Councilman Bill Peduto was exploring options of how to prevent hydraulic fracking with the city limits he “sent out an email to everyone he could think of – environmental groups, zoning and land use experts, environmental lawyers” (Perkins, 2017). Ben Price, who at the time was the National Organizing Director for CELDF, was on the email and proposed that Peduto use RoN ordinances to not limit fracking but ban

fracking within Pittsburgh's city limits (Perkins, 2017). The fact that Price was one of the people in Peduto's broad network exposed Peduto to RoN ordinances as a legal option to prevent hydraulic fracturing in Pittsburgh.

Communities also learned about RoN ordinances when neighboring communities enacted RoN ordinances. After Pittsburgh enacted RoN ordinances in 2010, four Pittsburgh suburbs, Baldwin, Wilkinsburg, Forest Hills, and West Homestead, Pennsylvania all enacted RoN ordinances the next year, modelled after the Pittsburgh ordinance. There are also instances when neighboring communities act in opposition to the same environmental concerns. This can be seen in the clustering of RoN ordinances as a way to prevent hydraulic fracturing in Western Pennsylvania and Ohio (see Figure 1). Additionally, when contesting a specific project, when one community turned to RoN ordinances as a way to oppose the project, a times neighboring communities would also utilize RoN ordinances to contest the same project. For example, the towns of Easton, Plymouth, and Sugar Hill, New Hampshire enacted RoN ordinances in opposition to Eversource's Northern Pass hydropower project, which proposed to build a “192-mile transmission line across New Hampshire to supply power to almost a million homes in southern New England” (Brooks 2019).

While the characteristics of the communities who enacted RoN ordinances in the US context are varied, there are some similarities. The majority of the communities that enacted RoN ordinances are in incorporated townships under 50,000 people (51 or 85 %) with 22 (36.6 %) in communities under 2,500 people. There were 6 (10 %) communities that were 50,000 to 100,000 and only 3 (5 %), Pittsburgh, Pennsylvania, Toledo, Ohio, and Orange County, Florida that were over 100,000 people. There are also similarities in racial make-up of communities based on 2020 US Census data. Communities were majority white, with the white alone (non-Hispanic) population an average of 83.41 % and a

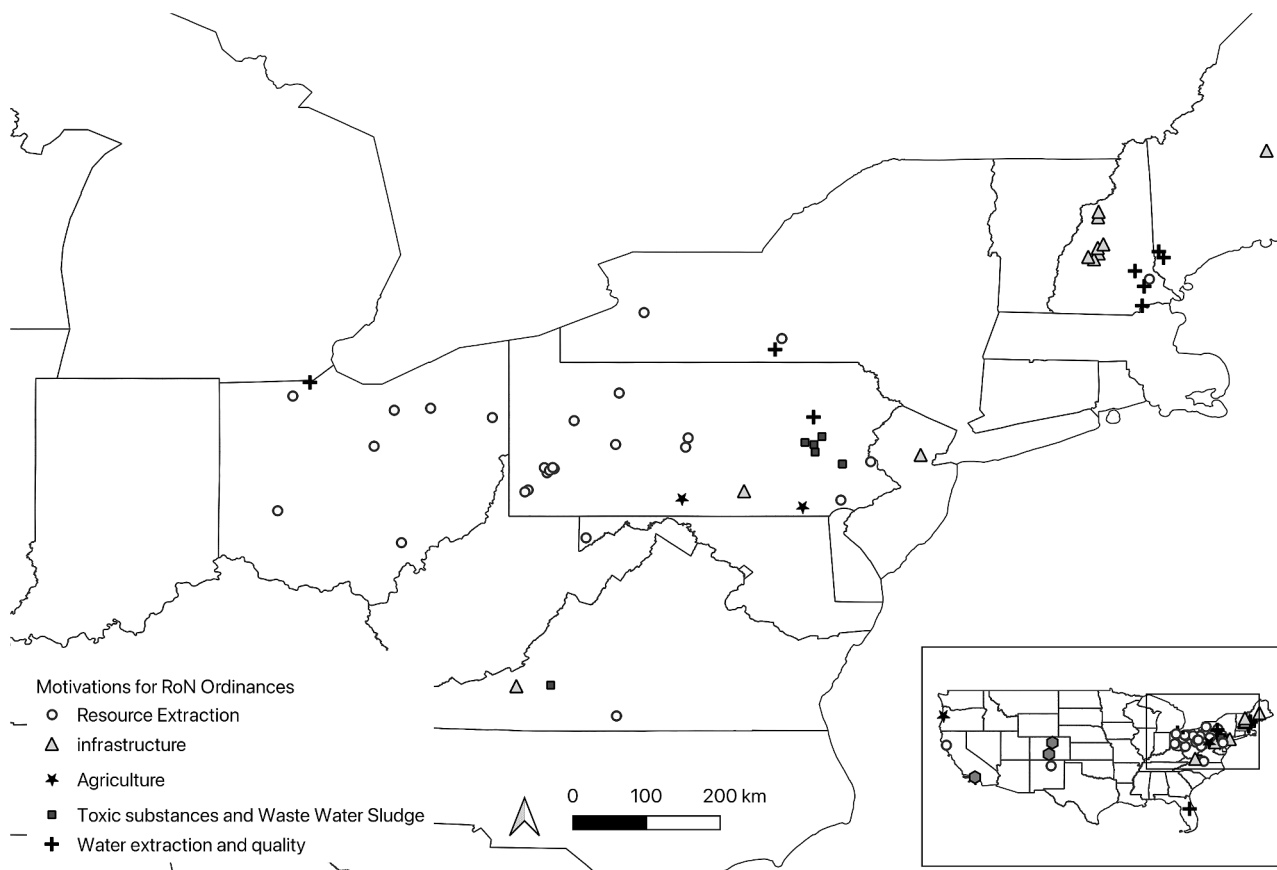


Fig. 1. Locations of RoN Ordinances in Northeastern, Mid-Atlantic, and Great Lakes regions of the United States. The motivations for the implementation of the ordinances are indicated on the map.

median of 91.0 % of the population of communities who enacted RoN ordinances. In the US as a whole, the white alone (non-Hispanic) population was 58.4 % of the population during the 2020 census (US Census 2020). Kohl and Walenta (2023) argue, that although there needs to be more research on the role of race in the operationalization of RoN ordinances, the whiteness of the RoN movement is troubling because of the history of Western white liberal conceptions of legal rights and the implications for Black and Brown communities to use liberal legal rights to access clean and healthy environment. In contrast, Fitz_Henry 2023, 1179) drawing on the organizing strategies of CELDF, argues that while historically CELDF only paid lip service to racial justice struggles, recent changes have shifted their focus towards an increased engagement with racial justice, “albeit not always sufficiently carefully and not always in the most sustained ways.” More research is necessary to understand the intersections between racial justice and RoN movements, as well as the role of race in the operationalization of RoN ordinances in the US context.

Through an examination of the evolution and characteristics of RoN ordinances in the US context, patterns emerge not only in how RoN has been operationalized, but also how this operationalization has changed over time. In the next section, I examine how RoN were enacted – either through personhood or extension of rights to nature, the centering of people verse nature in the ordinances, and the role of anti-corporation stances in RoN ordinances.

5. Rights of nature ordinances in non-Indigenous US communities

5.1. Shift from nature as person to nature as right bearing entity

When non-Indigenous US communities first operationalized RoN they did so by granting nature the statutes of personhood. As discussed above, a legal person has access to rights and privileges but also has responsibilities and liabilities under the law. There were 17 ordinances passed between 2006 and 2009 (see Table 1). Of those, 13 (76.4 %) granted personhood to nature. As an example, Campbell County, Virginia’s ordinance states that “county residents, natural communities, and ecosystems shall be considered ‘persons’ for purposes of the enforcement of civil rights of those residents, natural communities, and ecosystems” (Campbell County, Virginia 2007). Four (23.5 %) communities did not grant personhood to nature but extended rights to nature. For example, the Van Etten, New York ordinance states “Natural communities and ecosystems, including, but not limited to, wetlands, streams, rivers, aquifers, clouds, and other water systems, possess inalienable and fundamental rights to exist, flourish and naturally evolve within Van Etten” (Van Etten, New York, 2009).

A shift occurred in 2010, of the 42 ordinances passed between 2010—2020, only one, Newtown, Pennsylvania, which passed in 2010, established personhood for nature, the other 41 (97.6 %) extend rights to nature but do not grant nature the status of personhood. None of the 35 ordinances passed after 2010 granted the status of personhood to nature.

The most frequent way rights were extended to nature was to grant ecosystems or natural communities the right to “exist and flourish,” which was found in 51 (86.4 %) ordinances. For example, in Athens, Ohio “Ecosystems and natural communities possess the right to exist and flourish within the City of Athens and its jurisdictions” (Athens, Ohio 2014). The language of rights of nature to “exist and flourish” is prevalent in ordinances that do and do not grant nature status of personhood.

Table 1

Temporal Shift from assigning nature personhood to assigning rights to nature.

	Number of Ordinances	Personhood	Assigning Rights to Nature
2006–2009	17	13 (76.4 %)	4 (23.5 %)
2010–2020	42	1 (.02 %)	41 (97.6 %)

This language was found in 14 out of the 17 (82.3 %) ordinances between 2006 and 2009 and 37 out of 42 (88 %) after 2009. Communities that did not use the language “exist and flourish” granted specific rights to nature, such as the right to clean water (Sangerville, Maine; Mansfield, Ohio), the right to be free from chemical trespass (Lincoln County, Oregon), or the right to clean air (Mansfield, Ohio; Sangerville, Maine).

The extension of rights to nature also replicates human rights framework through the use of the language that rights of nature are “fundamental and inalienable,” which was found in 33 (55.9 %) of the ordinances. For example, Lafayette, Colorado’s ordinance states “Rights of ecosystems. Ecosystems possess unalienable and fundamental rights to exist and flourish within the City of Lafayette” (Lafayette, Colorado 2017). In contrast, in 47 (79.6 %) ordinances, the rights of people to a clean environment were declared to be fundamental and inalienable. Therefore, in 14 (23.7 %) ordinances, the rights of people, but not the rights of nature, were deemed fundamental and inalienable.

5.2. Rights for nature or rights for people?

The operationalization of RoN reflects the specific environmental problems the community is trying to address. Instead of focusing on protecting nature for its intrinsic value, communities use the extension of rights to nature as a way to protect their community from specific corporate threats, be it hydraulic fracturing (21 communities), infrastructure development (9 communities), water extraction (6 communities), resource extraction/mining (6 communities), wastewater sludge (5), water quality (3 communities), sustainable agriculture (2 communities), sustainability (2 communities), climate change (1 community), or pesticide application (1 community). The motivation for the ordinance is made explicit either through the preamble of the ordinance or within the statement of law. For example, Oberlin, Ohio’s ordinance preamble reads in part:

Whereas, this Ordinance bans the extraction of gas and oil along with associated activities, including the disposal of associated wastes, into injection wells within the City and its jurisdiction, because these activities violate the civil rights of the people of the City of Oberlin by threatening the health, safety, and welfare of the people, environmental, and neighborhoods of Oberlin. (City of Oberlin, 2013).

In contrast, in Plymouth, New Hampshire the motivation is embedded in the statement of law, “It shall be unlawful within Plymouth, NH for any corporation or government to engage in toxic waste disposal as defined by this Ordinance” (Plymouth, New Hampshire 2018).

Except for Crestone, Colorado’s ordinance, which *only* extends rights to nature, non-Indigenous US communities operationalized RoN so the rights of people to a clean and healthy environment were granted alongside the rights of nature. Importantly, the rights of people to a clean environment comes before the rights granted to nature in the text of the ordinances. In all cases, nature was granted specific rights, such as the right of nature to clean water, clean air, be free from chemical trespass, clean soil, and to sustainable energy future (see Table 2). People were also granted the same rights, but the rights they were

Table 2

Comparison of rights granted to nature versus rights granted to people.

Rights to ...	Number of ordinances that granted rights to nature	Number of ordinances that granted rights to people
Clean water	31 (53.3 %)	55 (91.7 %)
Clean air	11 (18.3 %)	31 (57.7 %)
Be free from chemical trespass	7 (11.6 %)	20 (33.3 %)
Clean soil	3 (5 %)	21 (35 %)
Sustainable energy future	2 (3 %)	26 (43 %)

granted were more diverse (22 categories) as opposed to the rights granted to nature (nine categories), and specific rights were granted to people more often. For example, while 30 (50.8 %) ordinances granted rights for nature to clean water, 55 (93.2 %) granted rights to people to clean water. The same pattern can be seen in the other rights extended to both people and nature (see Table 2). The exception is Crestone, Colorado's ordinance which states "that nature, natural ecosystems, communities, and all species possess intrinsic and inalienable rights which must be effectuated to protect life on Earth" (Crestone, Colorado 2018). Crestone was the only non-Indigenous US community not to be assisted by CELDF or the Center for Democratic and Environmental Rights (CDER), the organization founded by Mari Margil and Thomas Linzey when they split from CELDF in 2019 (Schamder et al. v. Linzey et al. 2020; CDER, 2023). Instead, the Crestone Ordinance was written with assistance from Myra Jackson, a RoN advocate who was a frequent visitor of the area, and the Earth Law Center (Earth Law Center 2018).

5.3. Limiting corporation's power

Within US non-Indigenous communities, all but two ordinances incorporated an anti-corporate clause in the ordinance. There are three ways communities operationalized anti-corporate stances within their ordinances, either an outright denial of corporate personhood, a conditional denial of corporate personhood, or limiting corporations' rights by denying them the rights to carry out specific actions, such as resource extraction or corporate farming. Fifty-two (88.1 %) ordinances denied personhood to corporations. Of these, 15 (25.4 %) included an outright denial of corporate personhood, such as in the case of Newtown Township, Pennsylvania which states, "Within Newtown Township, corporations shall not be "persons" under the United States or Pennsylvania Constitutions, or under the laws of the United States, Pennsylvania, or Newtown Township, and so shall not have the rights of persons under those constitutions and laws" (Newtown Township, Pennsylvania 2008). The remaining 37 (62.7 %) ordinances denied corporations personhood if they participated in a specific action or violated the ordinance, such as in Barrington, New Hampshire "Corporations and other business entities which violate this Ordinance, or which seek to violate this Ordinance, shall not be deemed to be "persons," nor possess any other legal rights, privileges, powers, or protections which would interfere with the enforcement of rights or prohibitions enumerated by this Ordinance" (Town of Barrington, New Hampshire, 2014). In the seven (11.8 %) communities that did not deny corporations personhood, four (6.7 %) limited corporate power by explicitly denying a specific corporate action. For example, in Todd Township, Pennsylvania "The rights-based law prohibits farming operations when the animals are not owned locally and when most of the farm's revenues do not stay within the Township. Farming operations that are contrary to the scenic and aesthetic values that provide Todd Township's rural character are also prohibited" (Todd Township, Pennsylvania 2018). Similar statements of law were found in all but two ordinances, the difference being in the majority of the cases, these actions also resulted in a loss of a corporation's legal status of personhood which limited their legal recourse.

As was the case with granting nature personhood, a temporal shift occurred in how personhood was stripped from corporations (see Table 3). Between 2006 and 2010, 24 communities passed RoN ordinances. Of those, 15 (62.5 %) included an outright denial of corporate personhood, 8 (33.3 %) denied corporate personhood if they

participated in a specific activity or violated the ordinance, and 1 (4.3 %) did not deny corporate personhood, but explicitly denied corporations the right to partake in specific actions. After 2010, there was no longer an outright denial of corporate personhood but a conditional denial of corporate personhood. Between 2011 and 2020, 35 communities passed RoN ordinances. Of those, no ordinances included an outright denial of corporate rights, 29 (82.8 %) included a conditional denial of corporate rights, and 6 (17.1 %) did not deny corporations personhood, but in four of those communities, the ordinance explicitly denied corporations from partaking in specific activities. Only Santa Monica, California, and Crestone, Colorado neither denied corporations the statutes of personhood nor limited corporate power to carry out specific tasks. Importantly, neither community partnered with CELDF in the development of their RoN policies. Santa Monica's original policy, which activists advocated for included anti-corporate language, but that language was removed in the final version of the policy. The same commitment to anti-corporation rhetoric is not found in international RoN cases nor within Indigenous communities in the US. Within Indigenous communities in the US, only one explicitly denies rights to corporations through a denial of personhood.

6. Discussion

An analysis of RoN ordinances in non-Indigenous communities in the US highlights three distinct elements of these ordinances. The first is the shift from granting nature the status of personhood to extending legal rights to nature. The second is the reliance on the conception of natural rights through the use of language that parallels human rights and in doing so develops a sense of inevitability in the extension of rights to nature. The third is the inclusion of anti-corporate clauses built into the ordinances, which reflects the goals of CELDF rather than the broader RoN movement. In what follows I reflect on each of these distinct characteristics, their potential limitations, and how they differ from broader RoN philosophical discourses.

Within the US legal system, RoN ordinances that granted nature personhood provide a specific legal framework that reflects the theoretical and philosophical underpinnings of the RoN movement. While they still rely on universalist language, which I critique below, they provide a framework through which nature has clearly defined legal protection, even if the legal authority of these jurisdictions to grant nature the status of personhood has been contested. Given the ambiguity of extension of rights as discussed in the literature review, by extending rights to nature instead of granting nature the status of personhood, these ordinances fall into a legal gray area where natural entities might have specific rights but they are not afforded the protection of legal personality. This distinction is important because it renders the rights granted to nature as nebulous, unclear, and in many instances unenforceable within US legal systems.

Legal scholars who have expressed concern about RoN ordinances, contend that by placing nature into this nebulous space, which will have to be litigated within the US judicial system, these ordinances do not protect nature, they instead, undermine existing environmental laws by shifting from regulatory to judiciary control (Spitz and Penalver 2021; Sachs 2023). Another concern, is that the shift from personhood to rights-bearing entity maintains existing hierarchies within the human-environment relations, with people maintaining supremacy under the law through status as legal personalities. Nature does shift from its status as property to a rights-bearing entity, but by not granting nature the

Table 3
Temporal shift in the ways that corporate power was limited.

Year	Number of Ordinances	Outright denial of corporate personhood	Conditional denial of corporate personhood	Denial of specific corporate act	No specific limit on corporate action
2006–2010	24	15 (62.5 %)	8 (33.3 %)	1 (4.1 %)	0
2011–2020	35	0	29 (82.8 %)	4 (11.4 %)	2 (5 %)

status of personhood, it limits the legal recourses available within the current US legal system. Finally, the ambiguity of rights leads to a difference between theory and practice, “but practice has not yet proven that these kinds of rights are a good mechanism of environmental protection” (Tănăsescu 2022, 10).

It is unclear why non-Indigenous communities in the US shifted from granting nature personhood to granting nature rights. More research is needed to understand what the motivations were for this shift. Even though the motives for this shift are unclear, what is evident is that even though the early ordinances extended the status of personhood to nature, they used language of inevitable universal rights. This language provided the legal framework within which communities could make the same claims for universal rights, but using different legal mechanisms, extending rights to nature rather than granting nature the status of personhood.

This maintenance of a hierarchy of people over nature can also be seen in the extension of rights for people to a clean environment over the rights of nature itself. Not only were rights granted to people before they were granted to nature in the ordinances, but more types of rights were granted to people than to nature (22 categories for people vs. 9 categories for nature). Furthermore, as discussed above, there are fourteen ordinances, or 23.7 % of the cases, where it was explicitly stated that people have a fundamental and inalienable right to a clean environment, but the ordinances do not mention the rights of nature to a clean environment as fundamental and inalienable. As I argue elsewhere, the prioritization of people’s rights to nature rather than the rights of nature can lead to a situation where nature remains in a subordinate position to the needs of people (Kohl and Walenta, 2023). It could be argued that extending rights and not personhood to nature aligns these ordinances with the rights to nature movement even though they were developed through RoN activism. The question then arises as to whether it matters what philosophical underpinnings and movements brought about the ordinances if they achieve the goals of protecting the environment and shifting people’s relationship with the environment. I contend that it does matter because the tool used to operationalize RoN in non-Indigenous communities in the US relies on universalist language and the uncritical adaptation of human rights frameworks and language in the ordinances.

The language of “fundamental” and “inalienable rights” mimics the language of the US Declaration of Independence (“We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness” (US 1776)) and the United Nations (UN) Declaration of Human Rights (“Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world ... Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights” (UN General Assembly, 1948)). While there is debate about the successfulness of the human rights framework, it has been critiqued as overemphasizing the importance of individuals, both in their autonomy and as political and economic actors (Cotula 2020; Langford 2018). Through this language, these discursive practices have been used to advance neoliberal economic reforms, without attention to the unjust economic order which creates inequitable human conditions (Cotula 2020; Hopgood 2014). Moreover, human rights discourse is critiqued for “the seeming preference for state-centric, duty-oriented, and legalized or ahistoricized conceptions of justice” which contrasts with “more open-ended collective or experimental notions of participation” (Langford 2018, 80). Moreover, it does not account for the raced and gendered colonial histories of legal rights (Kohl and Walenta 2023; Rawson and Mansfield 2018). In this way, the use of human rights further replicates and extends the liberal notions of rights embedded into these laws, which, replicates existing racialized power structures (Kohl and Walenta, 2023).

By enshrining the expansion of inalienable rights to nature, the

architects of these ordinances ignore the existing inequities on which contemporary human rights are based (Mollett 2017). Moreover, they create a sense of inevitability which erases the complexities of how the extension of rights are negotiated and contested in the development of what the rights constitute as well as whose rights should have primacy (Fish 2013; Fladvad et al. 2020; Pierce et al. 2016). In doing so, human rights discourse can be used as a (neo-) liberal tool used to wash away the political basis of problems by drawing on depolitical language, and in the process, drawing attention from the root causes of inequities (Golder 2014). By using human rights discourse to operationalize RoN theories, these ordinances replicate, rather than subvert existing power structures.

This brings us to the last unique element of RoN ordinances in non-Indigenous communities in the US, the anti-corporation rhetoric. The stripping of corporations’ personhood can be traced directly to the stated goals and work of CELDF as discussed above in section entitled *The Evolution of Rights of Nature in the United States*. The coupling of RoN ordinances with anti-corporate language further shifts the discourse from the intrinsic rights that nature possesses to the power imbalance between people and corporations.

It could be argued that this anti-corporation clause reflects the anti-capitalist and anti-neoliberal underpinnings of the rights to nature movement. I contend that even with the integration of an anti-corporation clause, these ordinances do not actively work to overturn or disrupt existing systemic injustices that facilitate unequal access to resources and places, which is a hallmark of the rights to nature movement. The self-rule and anti-corporation laws instead are a tool to address one specific corporation, which can be seen in the shift from universally stripping corporations of their status of personhood to either stripping corporations of their status of personhood if they participate in a specific act or specifically denying corporations a right to partake in a specific act. The only ordinance that does directly engage with issues of social justice is the Santa Monica ordinance and it is one of only two ordinances that does not deny corporations their personhood or limit corporations rights.

7. Conclusion

Examining RoN in place provides a deeper understanding of how RoN philosophies are being translated into law (Kinkaid 2019; Tănăsescu et al. 2024). The operationalization of RoN within the non-Indigenous US communities’ context does not mirror the philosophical underpinnings of RoN, nor the global RoN movement. Within the non-Indigenous US context, RoN ordinances are often turned to when communities feel as if they have no other option. They fear their way of life is being threatened and they have exhausted all other legal avenues to address their concerns. This does not mean the RoN approach has not provided environmental protection in specific communities. This has occurred through prolonged legal battles, as is the case in Grant Township, Pennsylvania, which has been fighting Pennsylvania Gas and Electric Company (PG&E) from installing an injection well in their community since 2014. In other instances, the outcomes were a result of regulatory boards ruling against the proposed project, as was the case in Eversource’s Northern Pass hydropower project. It is unclear what role RoN ordinances in Easton, Plymouth, and Sugar Hill, New Hampshire played in the ruling by the New Hampshire Site Evaluation Committee, a ruling upheld by the New Hampshire Supreme Court, but it did raise awareness and visibility of the communities’ discontent with the project (Brooks 2019). While I am sympathetic to these motivations and am awed by the work of activists who are trying to protect their community, the piecemeal approach of RoN risks protecting some at the expense of others.

Despite specific examples of successes, there is a disconnect between the rhetoric and operationalization of RoN within non-Indigenous US communities with the broader RoN movement. First, RoN ordinances in non-Indigenous US communities extend rights to nature rather than

grant nature the status of personhood, which in the US legal context places nature within a nebulous legal space. Second, these ordinances center the needs of people, and people's use of the environment. Finally, they have an anti-corporation clause by either denying corporations personhood, either outright or conditionally, or by denying corporations specific rights. These differences are not inherently negative. They may have the potential to prevent specific development projects from occurring within specific communities, but scholars have raised concerns that by transferring rights to nature brings environmental protection from the regulatory to the judicial sphere, which they contend has the potential to undo existing environmental regulations and potentially lead to worse environmental conditions (Spitz and Penalver 2021; Sachs 2023). Additionally, there is the possibility that conflicting needs between people and the environment may lead to instances where people are less, rather than more, inclined to protect the environment (O'Donnell, 2018). Regardless, RoN ordinances and the RoN movement claim they are granting rights to nature to shift the relationship between humans and the environment, and in doing so, provide a novel way to protect nature (Fitz-Henry 2018; Kauffman and Martin 2021; Macpherson 2021; O'Donnell, 2018). A close reading of the ordinances in non-Indigenous communities in the US indicates that this is not what they are doing, instead, these ordinances are prioritizing the rights of humans over nature and by drawing on the language of human rights, replicating white, Western, liberal ideals.

Questions remain as to how and if the operationalization of RoN can be achieved that provides increased protection without replicating existing systems of oppression. As RoN gains political traction, it is necessary to continue to critically assess its development, implementation, and impact as an overarching movement and in place. O'Donnell et al. (2020, 405) contend that "the most transformative cases of rights of Nature have been consistently influenced, and often actually led, by Indigenous peoples." What does this mean for non-Indigenous communities that are relying on this framework, how can they emulate the work done by Indigenous actors without co-opting or reifying their work? The ordinances highlighted in this paper rely on universalist, human rights language. Would they look different if they drew on rights in place (Pierce et al. 2016)? Finally, what would it look like if these RoN ordinances specifically integrated conceptions of social justice?

More research needs to be done to understand whether it is possible to operationalize RoN in a way that does not replicate existing power structures and whether this leads to a shift in people's understanding of the human-nature divide in the US context. Also, research needs to be done if this rights-based environmental governance is protecting and improving environmental conditions in both the communities where they are enacted as well as in ecosystems as a whole. This assessment needs to be done with attention to the various ways that specific communities operationalize RoN.

CRedit authorship contribution statement

Ellen Kohl: Writing – review & editing, Writing – original draft, Project administration, Methodology, Investigation, Formal analysis, Data curation, Conceptualization.

Declaration of Competing Interest

The authors declare that they have no known competing financial interests or personal relationships that could have appeared to influence the work reported in this paper.

Data availability

Data will be made available on request.

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